

Court No. - 3

Case :- WRIT - C No. - 33304 of 2021

Petitioner :- Fazil

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Arjit Srivastava,Usha
Srivastava,Vinod Kumar Srivastava

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Contention of the learned counsel for the petitioner is that the electricity connection in question is not in the name of the petitioner and the petitioner is not the consumer, yet the impugned notice is proceeded against him to recover a sum of Rs.91,312/-.

Learned counsel for the respondent nos.3 prays for and is granted two weeks' time to file counter affidavit. Petitioner shall have a week thereafter to file rejoinder affidavit.

Put up as a fresh case before the appropriate Bench on **21.04.2022.**

Considering the facts and circumstances of the case, particularly the report of the Up-Khand Adhikari, Kairana dated 28.06.2021 submitted to the respondent no.3 and filed as Annexure-4 to the writ petition, as an interim measure, it is provided that till the next date fixed, no coercive action shall be taken against the petitioner pursuant to the impugned recovery notice.

Order Date :- 25.3.2022

SK

Court No. - 3

Case :- WRIT - C No. - 33304 of 2021

Petitioner :- Fazil

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Arjit Srivastava, Usha Srivastava, Vinod Kumar Srivastava

Counsel for Respondent :- C.S.C., Kartikeya Saran

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"a) Issue a writ, order or direction in the nature of certiorari quash the impugned recovery notice dated 16.09.2021 issued by respondent no. 3 (Annexure no.5 to this writ petition).

b) Issue a writ, order or direction in the nature of mandamus directing and commanding the respondents /authorities not to harass the petitioner in pursuance of recovery citation dt. 16.09.2021."

Sri Kartikeya Saran, learned counsel for the respondent No. 3 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 26.5.2022

sfa/